

EMPLOYEE BENEFITS BROKERAGE AND ADMINISTRATION AGREEMENT

Contract ID: KBG-BEN-2024-0901

This Employee Benefits Brokerage and Administration Agreement (this “Agreement”), effective as of September 1, 2024 (the “Effective Date”), is entered into by and between **Keystone Benefits Group, LLC**, with offices at 920 Fifth Avenue, Suite 800, Seattle, WA 98104 (“Broker”), and **Contoso Marketing, LLC**, 1450 Harborview Avenue, Suite 600, Seattle, WA 98101 (“Client”). Broker and Client are each a “party” and together the “parties.”

1. SERVICES

1.1 Broker shall act as Client’s broker of record for group health, dental, vision, life, and disability benefits, and shall provide benefits administration, open-enrollment support, and compliance guidance for approximately **150 employees**.

2. TERM AND RENEWAL

2.1 Initial Term. Two (2) years from the Effective Date, ending **August 31, 2026**.

2.2 Automatic Renewal. This Agreement **renews automatically** for successive one-year terms unless terminated. Renewal date: **September 1, 2026**.

2.3 Notice. Either party may terminate or elect non-renewal by written notice **at least sixty (60) days** before the renewal date (by **July 3, 2026**).

3. COMPENSATION

3.1 Broker is compensated through a combination of carrier-paid commissions and a flat annual administration fee of **USD \$24,000**, invoiced quarterly, **net 30**.

3.2 No fixed escalation clause applies; the administration fee is held flat for each term and any change is negotiated at renewal. Carrier commissions are set by the carriers.

4. DATA PROTECTION

4.1 Broker handles employee **personal data and protected health information (PHI)**. Broker acts as Client’s **Business Associate** and the parties have executed a **HIPAA Business Associate Agreement (Exhibit B)** and a general **Data Processing Addendum**, both forming part of this Agreement.

4.2 Broker shall safeguard PHI/PII with administrative, physical, and technical safeguards; limit use to permitted purposes; and report any breach of unsecured PHI within the timeframes required by HIPAA and applicable state law.

5. CONFIDENTIALITY

Each party shall maintain the confidentiality of the other’s non-public information and of employee data indefinitely with respect to PHI.

6. LIABILITY

Broker's liability is capped at the greater of the fees paid in the prior twelve months or \$100,000, except for breaches of Section 4 and willful misconduct.

7. GOVERNING LAW

This Agreement is governed by the laws of the State of Washington, without regard to its conflict-of-laws principles.

8. GENERAL PROVISIONS

- 8.1 Notices.** All notices under this Agreement shall be in writing and delivered to the addresses set forth above (or such other address as a party designates in writing) by personal delivery, nationally recognized overnight courier, or certified mail, and shall be deemed given upon receipt.
- 8.2 Entire Agreement; Amendment.** This Agreement, together with its Exhibits, constitutes the entire agreement between the parties and supersedes all prior or contemporaneous understandings. It may be amended only by a writing signed by both parties.
- 8.3 Assignment.** Neither party may assign this Agreement without the other's prior written consent, except to a successor in connection with a merger or sale of substantially all of its assets.
- 8.4 Severability; Waiver.** If any provision is held unenforceable, the remaining provisions remain in full force and effect. No waiver of any breach shall constitute a waiver of any subsequent breach.
- 8.5 Force Majeure.** Neither party shall be liable for any delay or failure to perform due to causes beyond its reasonable control.
- 8.6 Counterparts.** This Agreement may be executed in counterparts, including by electronic signature, each of which is deemed an original and all of which together constitute one instrument.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Keystone Benefits Group, LLC

Contoso Marketing, LLC

Authorized Signature

Authorized Signature

By:

By:

Name: N. Abramson

Name: P. Iverson

Title: Principal

Title: Head of People

Date: September 1, 2024

Date: September 1, 2024